

The Board of Education of the Brecksville-Broadview Heights City School District met in regular session on September 24, 2019, commencing at 7:00 p.m., at the Education Center, 6638 Mill Road, Brecksville, Ohio, with the following members present:

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\_\_\_\_\_  
\_\_\_\_\_

The Interim Treasurer advised the Board that the notice requirements of Section 121.22 of the Revised Code and the implementing rules adopted by the Board pursuant thereto were complied with for the meeting.

\_\_\_\_\_ moved the adoption of the following resolution:

**A RESOLUTION PROVIDING FOR THE ISSUANCE AND SALE OF BONDS IN A MAXIMUM AGGREGATE PRINCIPAL AMOUNT OF \$43,960,000 FOR THE PURPOSE OF REFUNDING FOR DEBT SERVICE COST SAVINGS ALL OR A PORTION OF THE \$43,960,000 OF THE SCHOOL DISTRICT'S OUTSTANDING SCHOOL FACILITIES IMPROVEMENT BONDS, SERIES 2018, DATED AS OF SEPTEMBER 11, 2018, STATED TO MATURE ON DECEMBER 1 IN EACH OF THE YEARS FROM 2030 THROUGH 2038, 2045, 2048 AND 2054 AND SUBJECT TO REDEMPTION, BY AND AT THE SOLE OPTION OF THE SCHOOL DISTRICT, ON ANY DATE ON OR AFTER DECEMBER 1, 2023, THAT WERE ISSUED FOR THE PURPOSE OF CONSTRUCTING, FURNISHING, EQUIPPING AND OTHERWISE IMPROVING A NEW ELEMENTARY SCHOOL, RENOVATING, REMODELING, ADDING TO, FURNISHING, EQUIPPING AND OTHERWISE IMPROVING EXISTING SCHOOL DISTRICT BUILDINGS AND FACILITIES AND ACQUIRING, CLEARING, IMPROVING AND EQUIPPING REAL ESTATE FOR SCHOOL DISTRICT BUILDINGS AND FACILITIES; AUTHORIZING AND DIRECTING THE CALL FOR OPTIONAL REDEMPTION ON DECEMBER 1, 2023 OF THE REFUNDED BONDS; AND AUTHORIZING THE EXECUTION AND DELIVERY OF A BOND REGISTRAR AGREEMENT, A BOND PURCHASE AGREEMENT AND A CONTINUING DISCLOSURE AGREEMENT WITH RESPECT TO THE REFUNDING BONDS AND AN ESCROW AGREEMENT WITH RESPECT TO THE REFUNDING OF THE REFUNDED BONDS.**

WHEREAS, at an election held in this School District on May 8, 2018, on the question of issuing bonds of this School District in the aggregate principal amount of \$44,500,000 for the purpose of constructing, furnishing, equipping and otherwise improving a new elementary school, renovating, remodeling, adding to, furnishing, equipping and otherwise improving existing School District buildings and facilities and acquiring, clearing, improving and equipping real estate for School District buildings and facilities (the Project) and of levying annual taxes outside the ten-mill limitation to pay the debt charges on those bonds and any anticipatory securities, the requisite majority of those voting on the question voted in favor of it; and

WHEREAS, pursuant to a resolution adopted by this Board on July 18, 2018, as amended by a resolution adopted by the Board on August 6, 2018, and a related certificate of award dated August 29, 2018, signed by the President of this Board and the Treasurer, the School District issued its \$44,499,977.45 School Facilities Improvement Bonds, Series 2018, dated as of September 11, 2018 (collectively, the Series 2018 Bonds), all of which were securities authorized at that election to provide funds to pay costs of the Project; and

WHEREAS, this Board finds and determines that it is in the best interest of the School District (i) to refund for debt service cost savings all or a portion of the \$43,960,000 of the Series 2018 Bonds now outstanding that are stated to mature on December 1 in each of the years from 2030 through 2038, 2045, 2048 and 2054 and subject to redemption, by and at the sole option of the School District, on any date on or after December 1, 2023 (those Series 2018 Bonds to be refunded, to be finally determined and specified by the President and Treasurer of this Board at the time of the sale of the Bonds as set forth in Section 2, being hereinafter collectively referred to as the "Refunded Bonds"), (ii) to exercise its option to call all of the Refunded Bonds for redemption on December 1, 2023, the earliest optional redemption date for the Series 2018 Bonds, and (iii) to issue the Bonds described in Section 2 to provide funds sufficient, together with other funds available to the School District, for that refunding and call and to pay the costs of issuing the Bonds and refunding the Refunded Bonds; and

WHEREAS, the Interim Treasurer of this Board, as fiscal officer of the School District, has certified to this Board that the estimated life or period of usefulness of each class of the improvements included in the Project was, at the time of issuance of the Series 2018 Bonds, at least five years, and that the maximum maturity of the Bonds described in Section 2 is not earlier than December 1, 2054, the final maturity of the Series 2018 Bonds;

NOW, THEREFORE, BE IT RESOLVED by the Board of Education of the Brecksville-Broadview Heights City School District, County of Cuyahoga, Ohio, that:

SECTION 1. Definitions and Interpretation. In addition to the words and terms elsewhere defined in this Resolution, unless the context or use clearly indicates another or different meaning or intent:

"Authorized Denominations" means (a) with respect to any Capital Appreciation Bonds, a denomination equal to a principal amount that, when interest at the applicable compounding interest rate is accrued and compounded thereon on each Interest Accretion Date to the stated maturity of those Bonds, will result in a Maturity Amount equal to \$5,000 or any whole multiple thereof and (b) with respect to Current Interest Bonds, a denomination of \$5,000 or any whole multiple thereof.

"Bond proceedings" means, collectively, this Resolution, the Certificate of Award, the Continuing Disclosure Agreement, the Registrar Agreement and such other proceedings of the School District, including the Bonds, that provide collectively for, among other things, the rights of holders and beneficial owners of the Bonds.

"Bond Register" means all books and records necessary for the registration, exchange and transfer of Bonds as provided in Section 5.

“Bond Registrar” means The Huntington National Bank, as the initial authenticating agent, bond registrar, transfer agent and paying agent for the Bonds under the Registrar Agreement and until a successor Bond Registrar shall have become such pursuant to the provisions of the Registrar Agreement and, thereafter, “Bond Registrar” shall mean the successor Bond Registrar.

“Book entry form” or “book entry system” means a form or system under which (a) the ownership of book entry interests in Bonds and the principal of and interest on the Bonds may be transferred only through a book entry, and (b) physical Bond certificates in fully registered form are issued by the School District only to a Depository or its nominee as registered owner, with the Bonds deposited with and maintained in the custody of the Depository or its agent. The book entry maintained by others than the School District or the Bond Registrar is the record that identifies the owners of book entry interests in those Bonds and that principal and interest.

“Capital Appreciation Bonds” means any Bonds designated as such in the Certificate of Award, maturing on the Principal Payment Dates, being in the principal amounts and having the Maturity Amounts set forth therein, and bearing interest accrued and compounded on each Interest Accretion Date and payable at maturity.

“Certificate of Award” means the certificate authorized to be signed by the President and Treasurer of this Board pursuant to subsection (a) of Section 6, specifying and determining those terms or other matters pertaining to the Bonds and their issuance, sale and delivery as this Resolution requires or authorizes to be set forth or determined therein.

“Closing Date” means the date of physical delivery of, and payment of the purchase price for, the Bonds.

“Compound Accreted Amount” means, with respect to any Capital Appreciation Bond, the principal amount thereof plus interest accrued and compounded on each Interest Accretion Date to the date of maturity or other date of determination. The Compound Accreted Amount per \$5,000 Maturity Amount of the Capital Appreciation Bonds of each maturity and each compounding interest rate within a maturity as of each Interest Accretion Date shall be set forth in the Certificate of Award. The Compound Accreted Amount of a Capital Appreciation Bond as of any date other than an Interest Accretion Date is the sum of (a) the Compound Accreted Amount for that Bond on the immediately preceding Interest Accretion Date plus (b) the product of (i) the difference obtained by subtracting (A) the Compound Accreted Amount of that Bond on the immediately preceding Interest Accretion Date from (B) the Compound Accreted Amount of that Bond on the immediately succeeding Interest Accretion Date, times (ii) the ratio of (C) the number of days from the immediately preceding Interest Accretion Date to the date of determination to (D) the total number of days from that immediately preceding Interest Accretion Date to the immediately succeeding Interest Accretion Date; provided, however, that in determining the Compound Accreted Amount of a Capital Appreciation Bond as of a date prior to the first Interest Accretion Date, the Closing Date shall be deemed to be the immediately preceding Interest Accretion Date and the principal amount of that Bond shall be deemed to be the Compound Accreted Amount on the Closing Date.

“Continuing Disclosure Agreement” means the agreement authorized by subsection (c) of Section 6 to be signed by the President and Treasurer of this Board and the Superintendent of Schools, to be substantially in the form on file with the Treasurer and which, together with the agreements of the School District set forth in that subsection and the Bonds, shall constitute the continuing disclosure agreement made by the School District for the benefit of holders and beneficial owners of the Bonds in accordance with the Rule.

“Current Interest Bonds” means, collectively, Current Interest Serial Bonds and Term Bonds.

“Current Interest Serial Bonds” means those Current Interest Bonds designated as such (or as “Serial Bonds”) in the Certificate of Award, maturing on the Principal Payment Dates set forth therein, bearing interest payable on each Interest Payment Date and not subject to mandatory sinking fund redemption.

“Depository” means any securities depository that is a clearing agency under federal law operating and maintaining, with its Participants or otherwise, a book entry system to record ownership of book entry interests in Bonds or the principal of and interest on Bonds, and to effect transfers of Bonds, in book entry form, and includes and means initially The Depository Trust Company (a limited purpose trust company), New York, New York.

“Escrow Agreement” means the Escrow Agreement between the School District and the Escrow Trustee, as it may be modified from the form on file with the Treasurer of this Board and signed by the President and Treasurer of this Board in accordance with Section 8 of this Resolution.

“Escrow Fund” means the 2019 Brecksville-Broadview Heights City School District Refunded Bonds Escrow Fund established pursuant to Section 9 of this Resolution and the Escrow Agreement.

“Escrow Trustee” means The Bank of New York Mellon Trust Company, N.A., as the initial escrow trustee with respect to the Refunded Bonds under the Escrow Agreement and until a successor Escrow Trustee shall have become such pursuant to the provisions of the Escrow Agreement and, thereafter, “Escrow Trustee” shall mean the successor Escrow Trustee.

“Interest Accretion Dates” means, unless otherwise determined by the President and Treasurer of this Board and specified in the Certificate of Award, as to any Capital Appreciation Bonds, June 1 and December 1 of each year during which Capital Appreciation Bonds are outstanding, commencing December 1, 2019.

“Interest Payment Dates” means, unless otherwise determined by the President and Treasurer of this Board and specified in the Certificate of Award, (a) as to Current Interest Bonds, June 1 and December 1 of each year during which Current Interest Bonds are outstanding, commencing June 1, 2020, and (b) as to any Capital Appreciation Bonds, their respective maturity dates.



“Maturity Amount” means, with respect to a Capital Appreciation Bond, the principal of and interest on that Bond due and payable at its stated maturity.

“Municipal Advisor” means Sudsina & Associates, LLC.

“Original Purchasers” means, collectively, Stifel, Nicolaus & Company, Incorporated and RBC Capital Markets, LLC.

“Participant” means any participant contracting with a Depository under a book entry system and includes securities brokers and dealers, banks and trust companies, and clearing corporations.

“Principal Payment Dates” means, unless otherwise determined by the President and Treasurer of this Board and specified in the Certificate of Award, December 1 in each of the years from 2020 through 2054; provided that in no event shall the earliest Principal Payment Date be later than the date of the first scheduled payment of principal of the Refunded Bonds or the latest Principal Payment Date be later than December 1, 2054.

“Purchase Agreement” means the Bond Purchase Agreement between the School District and the Original Purchasers, as it may be modified from the form on file with the Treasurer and signed by the President and Treasurer of this Board in accordance with Section 6.

“Refunded Bonds” means those of the \$43,960,000 of the Series 2018 Bonds now outstanding, stated to mature on December 1 in each of the years from 2030 through 2038, 2045, 2048 and 2054 and subject to redemption, by and at the sole option of the School District, on any date on or after December 1, 2023, that are to be refunded by the Bonds, as determined by the President and Treasurer of this Board and specified in the Certificate of Award at the time of the sale of the Bonds in accordance with Section 2, and may include all of those Series 2018 Bonds.

“Registrar Agreement” means the Bond Registrar Agreement between the School District and the Bond Registrar, as it may be modified from the form on file with the Treasurer and signed by the President and Treasurer of this Board in accordance with Section 4.

“Rule” means Rule 15c2-12 prescribed by the SEC pursuant to the Securities Exchange Act of 1934.

“SEC” means the United States Securities and Exchange Commission.

“Series 2018 Bond Legislation” means, collectively, the resolution adopted by this Board on July 18, 2018, as amended by a resolution adopted by the Board on August 6, 2018, as amended by a resolution adopted by the Board on August 6, 2018, authorizing the issuance and sale of the Series 2018 Bonds and the related certificate of award dated August 29, 2018, signed by the President and Treasurer of this Board.

“Series 2018 Bonds” means the School District’s \$43,499,977.45 School Facilities Improvement Bonds, Series 2018, dated as of September 11, 2018, issued pursuant to the Series 2018 Bond Legislation.

“Term Bonds” means those Current Interest Bonds designated as such in the Certificate of Award, maturing on the Principal Payment Date or Dates set forth therein, bearing interest payable on each Interest Payment Date and subject to mandatory sinking fund redemption.

“Treasurer” means the person at the time performing the duties of the Treasurer of the Board of Education and the chief financial officer and fiscal officer of the School District.

The captions and headings in this Resolution are solely for convenience of reference and in no way define, limit or describe the scope or intent of any Sections, subsections, paragraphs, subparagraphs or clauses hereof. Reference to a Section means a section of this Resolution unless otherwise indicated.

SECTION 2. Authorized Principal Amount and Purpose. This Board determines that it is necessary and in the best interest of the School District to issue bonds of this School District in a maximum aggregate principal amount of \$43,960,000 (the Bonds) (i) to refund for debt service cost savings the Refunded Bonds, which Refunded Bonds were issued to provide funds for the purpose of constructing, furnishing, equipping and otherwise improving a new elementary school, renovating, remodeling, adding to, furnishing, equipping and otherwise improving existing School District buildings and facilities and acquiring, clearing, improving and equipping real estate for School District buildings and facilities, and (ii) to pay expenses related to the refunding of the Refunded Bonds and to the issuance of the Bonds, all being bonds approved by the voters of the School District at the election identified in the first preamble of this Resolution.

As set forth in the preambles, based on market conditions at the time of the sale of the Bonds and their determination of the best interest of and financial advantages to the School District, the President and Treasurer of this Board shall determine, and shall specify in the Certificate of Award, the Series 2018 Bonds to be refunded (the Refunded Bonds), which may include all or a portion of the outstanding Series 2018 Bonds stated to mature on December 1 in each of the years from 2030 through 2038, 2045, 2048 and 2054 and subject to redemption, by and at the sole option of the School District, on any date on or after December 1, 2023. Subject to the limitations set forth in this Resolution, the aggregate principal amount of the Bonds to be issued, the principal maturities of and principal payment schedule for the Bonds, the interest rate or rates or compounding interest rate or rates that the Bonds shall bear and certain other terms and provisions of the Bonds identified in this Resolution are subject to further specification or determination in the Certificate of Award upon the finalization of the terms and provisions of the Bonds. The aggregate principal amount of Bonds to be issued, as so specified in the Certificate of Award, shall be the amount determined by the President and Treasurer of this Board to be necessary, taking into account any premium above the aggregate principal amount of the Bonds at which they are sold to the Original Purchasers and other funds available for the purpose, to carry out the purpose for which the Bonds are to be issued in a manner consistent with the agreements and covenants of the Board and the School District set forth in the Series 2018 Bond Legislation, the Refunded Bonds and this Resolution; provided that in no event shall the aggregate principal amount of the Bonds to be issued exceed the aggregate principal amount of the Refunded Bonds.

SECTION 3. Denominations; Dating; Principal and Interest Payment and Redemption Provisions. The Bonds shall be issued in one lot and only as fully registered bonds, in the Authorized Denominations, but in no case as to a particular maturity date exceeding the principal amount stated to mature on that date. The respective principal amounts of the Bonds to be issued as Current Interest Bonds and Capital Appreciation Bonds (if any Bonds are issued as Capital Appreciation Bonds) shall be determined by the President and Treasurer of this Board in the Certificate of Award, having due regard to the best interest of and financial advantages to the School District. Unless otherwise specified by the President and Treasurer of this Board in the Certificate of Award, all of the Bonds shall be dated as of the Closing Date.

(a) Interest Rates and Payment Dates. The Current Interest Bonds shall bear the rate or rates of interest per year (computed on the basis of a 360-day year consisting of twelve 30-day months), not exceeding 10% per year as to any stated maturity, as shall be specified by the President and Treasurer of this Board (subject to subsection (c) of this Section) in the Certificate of Award. Interest on the Current Interest Bonds shall be payable on each Interest Payment Date until the principal amount has been paid or provided for. The Current Interest Bonds shall bear interest from the most recent date to which interest has been paid or provided for or, if no interest has been paid or provided for, from their date.

Any Capital Appreciation Bonds shall bear interest from the Closing Date at the compounding rate or rates of interest per year (computed on the basis of a 360-day year consisting of twelve 30-day months), not exceeding 30% per year for any stated maturity, accrued and compounded on each Interest Accretion Date and payable at maturity, that will result in the aggregate Maturity Amounts payable at maturity, as shall be specified by the President and Treasurer of this Board (subject to the provisions of subsection (c) of this Section) in the Certificate of Award. The total interest accrued on any Capital Appreciation Bond as of any particular date shall be an amount equal to the amount by which the Compound Accreted Amount of that Capital Appreciation Bond as of that date exceeds the principal amount of that Capital Appreciation Bond.

(b) Principal Payment Schedule. The Bonds shall mature or be payable pursuant to Mandatory Sinking Fund Redemption Requirements (as hereinafter defined and described) on the Principal Payment Dates in the following years and principal amounts:

| <u>Year</u> | <u>Principal<br/>Amount</u> | <u>Year</u> | <u>Principal<br/>Amount</u> |
|-------------|-----------------------------|-------------|-----------------------------|
| 2020        | \$ 5,000                    | 2038        | \$ 10,000                   |
| 2021        | 5,000                       | 2039        | 1,615,000                   |
| 2022        | 520,000                     | 2040        | 1,755,000                   |
| 2023        | 545,000                     | 2041        | 1,820,000                   |
| 2024        | 565,000                     | 2042        | 1,880,000                   |
| 2025        | 590,000                     | 2043        | 2,020,000                   |
| 2026        | 610,000                     | 2044        | 2,105,000                   |
| 2027        | 635,000                     | 2045        | 2,185,000                   |
| 2028        | 660,000                     | 2046        | 2,315,000                   |
| 2029        | 685,000                     | 2047        | 2,420,000                   |
| 2030        | 640,000                     | 2048        | 2,520,000                   |
| 2031        | 50,000                      | 2049        | 2,670,000                   |
| 2032        | 40,000                      | 2050        | 2,785,000                   |
| 2033        | 30,000                      | 2051        | 2,895,000                   |
| 2034        | 20,000                      | 2052        | 3,005,000                   |
| 2035        | 15,000                      | 2053        | 3,110,000                   |
| 2036        | 15,000                      | 2054        | 3,210,000                   |
| 2037        | 10,000                      |             |                             |

; provided that, subject to the limitations set forth in Sections 1 and 2 and this Section 3, the principal amount of Bonds maturing or subject to Mandatory Sinking Fund Redemption Requirements on any one or more of the Principal Payment Dates may be increased or decreased as specified by the President and Treasurer of this Board in the Certificate of Award, consistently with their determination of the best interest of and financial advantages to the School District.

Consistently with the foregoing and in accordance with their determination of the best interest of and financial advantages to the School District, the President and Treasurer of this Board shall specify in the Certificate of Award (i) the aggregate principal amount of Bonds to be issued, (ii) the aggregate principal amount of Bonds to be issued as Current Interest Bonds, (iii) the aggregate principal amount of Current Interest Bonds to be issued as Current Interest Serial Bonds, the Principal Payment Dates on which those Bonds shall be stated to mature and the principal amount thereof that shall be stated to mature on each such Principal Payment Date, (iv) the aggregate principal amount of Current Interest Bonds to be issued as Term Bonds, if any, the Principal Payment Date or Dates on which those Bonds shall be stated to mature, the principal amount thereof that shall be stated to mature on each such Principal Payment Date, the Principal Payment Date or Dates on which Term Bonds shall be subject to mandatory sinking fund redemption (Mandatory Redemption Dates) and the principal amount thereof that shall be payable pursuant to Mandatory Sinking Fund Redemption Requirements on each Mandatory Redemption Date, and (v) the aggregate principal amount of the Bonds to be issued as Capital Appreciation Bonds, if any, and the corresponding aggregate Maturity Amount of any such Bonds, the Principal Payment Date or Dates on which any such Bonds shall be stated to mature, and the principal amount and corresponding Maturity Amount thereof that shall be payable on each such Principal Payment Date.



(c) Conditions for Establishment of Interest Rates and Principal Payment Dates and Amounts. The rate or rates of interest per year to be borne by the Current Interest Bonds and the compounding rate or rates of interest per year to be borne by any Capital Appreciation Bonds, and the principal amount of Current Interest Bonds maturing or payable pursuant to Mandatory Sinking Fund Redemption Requirements on each Principal Payment Date and the Maturity Amount of any Capital Appreciation Bonds payable on each Principal Payment Date, shall be such as to demonstrate net present value debt service cost savings to the School District due to the refunding of the Refunded Bonds in an amount not less than 3.00% of the principal amount of the Refunded Bonds, after taking into account all expenses related to that refunding and to the issuance of the Bonds.

(d) Payment of Debt Charges. The debt charges on the Bonds shall be payable in lawful money of the United States of America without deduction for the services of the Bond Registrar as paying agent. Principal of and any premium on the Current Interest Bonds, and principal of and interest on any Capital Appreciation Bonds, shall be payable when due upon presentation and surrender of the Bonds at the principal corporate trust office of the Bond Registrar. Interest on a Current Interest Bond shall be paid on each Interest Payment Date by check or draft mailed to the person in whose name the Bond was registered, and to that person's address appearing, on the Bond Register at the close of business on the fifteenth day of the calendar month next preceding that Interest Payment Date. Notwithstanding the foregoing, if and so long as the Bonds are issued in a book entry system, principal of and interest and any premium on the Bonds shall be payable in the manner provided in any agreement entered into by the Treasurer, in the name and on behalf of the School District, in connection with the book entry system.

The School District reserves the right to order the Bond Registrar to return to it any money held by the Bond Registrar for the payment of (i) checks or drafts for the payment of interest on the Bonds or (ii) principal of or premium on Bonds, which checks, drafts or Bonds have not been presented for payment within four years following the date on which payment of the interest or principal represented thereby came due. Thereafter, the registered owners shall look only to the School District for payment of the interest and principal represented by those checks, drafts and Bonds.

(e) Redemption Provisions. The Capital Appreciation Bonds, if any, shall not be subject to redemption prior to maturity. Unless otherwise specified by the President and Treasurer of this Board in the Certificate of Award, consistently with their determination of the best interest of and financial advantages to the School District, the Current Interest Bonds shall be subject to redemption prior to stated maturity as follows:

(i) Mandatory Sinking Fund Redemption of Term Bonds. If any of the Bonds are issued as Term Bonds, the Term Bonds shall be subject to mandatory redemption in part by lot and be redeemed pursuant to mandatory sinking fund requirements at a redemption price of 100% of the principal amount redeemed, plus accrued interest to the redemption date, on the applicable Mandatory Redemption Dates and in the principal amounts payable on those Dates, for which provision is made in the Certificate of Award (such Dates and amounts, the Mandatory Sinking Fund Redemption Requirements).

The aggregate of the moneys to be deposited with the Bond Registrar for payment of principal of and interest on the Bonds on each Mandatory Redemption Date shall include an amount sufficient to redeem on that Date the principal amount of Term Bonds payable on that Date pursuant to Mandatory Sinking Fund Redemption Requirements (less the amount of any credit as hereinafter provided).

The School District shall have the option to deliver to the Bond Registrar for cancellation Term Bonds in any aggregate principal amount and to receive a credit against the then current or any subsequent Mandatory Sinking Fund Redemption Requirement (and corresponding mandatory redemption obligation) of the School District, as specified by the Treasurer, for Term Bonds stated to mature on the same Principal Payment Date and bear interest at the same rate as the Term Bonds so delivered. That option shall be exercised by the School District on or before the 45th day preceding any Mandatory Redemption Date with respect to which the School District wishes to obtain a credit, by furnishing the Bond Registrar a certificate, signed by the Treasurer, setting forth the extent of the credit to be applied with respect to the then current or any subsequent Mandatory Sinking Fund Redemption Requirement for Term Bonds stated to mature on the same Principal Payment Date and bear interest at the same rate. If the certificate is not timely furnished to the Bond Registrar, the then current Mandatory Sinking Fund Redemption Requirement (and corresponding mandatory redemption obligation) shall not be reduced. A credit against the then current or any subsequent Mandatory Sinking Fund Redemption Requirement (and corresponding mandatory redemption obligation), as specified by the Treasurer, also shall be received by the School District for any Term Bonds that prior thereto have been redeemed (other than through the operation of the applicable Mandatory Sinking Fund Redemption Requirements) or purchased for cancellation and canceled by the Bond Registrar, to the extent not applied theretofore as a credit against any Mandatory Sinking Fund Redemption Requirement, for Term Bonds stated to mature on the same Principal Payment Date and bear interest at the same rate as the Term Bonds so redeemed or purchased and canceled.

Each Term Bond so delivered, or previously redeemed, or purchased and canceled, shall be credited by the Bond Registrar at 100% of the principal amount thereof against the then current or subsequent Mandatory Sinking Fund Redemption Requirements (and corresponding mandatory redemption obligations), as specified by the Treasurer, for Term Bonds stated to mature on the same Principal Payment Date and bear interest at the same rate as the Term Bonds so delivered, redeemed or purchased and canceled.

(ii) Optional Redemption. The Current Interest Bonds stated to mature on or after December 1, 2030 shall be subject to redemption, by and at the sole option of the School District, either in whole or in part (in whole multiples of \$5,000), on any date on or after December 1, 2029, at a redemption price of 100% of the principal amount redeemed, plus accrued interest to the redemption date.

Bonds to be redeemed pursuant to this paragraph shall be redeemed only upon written notice from the Treasurer to the Bond Registrar, given upon the direction of this Board by adoption of a resolution. That notice shall specify the redemption date and the principal amount of Bonds of each maturity (and of each interest rate within a maturity) to be redeemed and shall be

given at least 45 days prior to the redemption date or such shorter period as shall be acceptable to the Bond Registrar.

(iii) Partial Redemption. If fewer than all of the outstanding Bonds are called for optional redemption at one time and Bonds of more than one maturity or interest rate within a maturity are then outstanding, the Bonds that are called shall be Bonds of the maturity or maturities and interest rate or rates selected by the School District. If fewer than all of the Bonds of a single maturity and interest rate within a maturity are to be redeemed, the selection of Bonds of that maturity and interest rate to be redeemed, or portions thereof in amounts of \$5,000 or any whole multiple thereof, shall be made by the Bond Registrar by lot in a manner determined by the Bond Registrar. In the case of a partial redemption of Bonds by lot when Bonds of denominations greater than \$5,000 are then outstanding, each \$5,000 unit of principal thereof shall be treated as if it were a separate Bond of the denomination of \$5,000. If it is determined that one or more, but not all, of the \$5,000 units of principal amount represented by a Bond are to be called for redemption, then, upon notice of redemption of a \$5,000 unit or units, the registered owner of that Bond shall surrender the Bond to the Bond Registrar (A) for payment of the redemption price of the \$5,000 unit or units of principal amount called for redemption (including, without limitation, the interest accrued to the date fixed for redemption and any premium), and (B) for issuance, without charge to the registered owner, of a new Bond or Bonds of any Authorized Denomination or Denominations in an aggregate principal amount equal to the unmatured and unredeemed portion of, and bearing interest at the same rate and maturing on the same date as, the Bond surrendered.

(iv) Notice of Redemption. The notice of the call for redemption of Bonds shall identify (A) by designation, letters, numbers or other distinguishing marks, the Bonds or portions thereof to be redeemed, (B) the redemption price to be paid, (C) the date fixed for redemption, and (D) the place or places where the amounts due upon redemption are payable. The notice shall be given by the Bond Registrar on behalf of the School District by mailing a copy of the redemption notice by first class mail, postage prepaid, at least 30 days prior to the date fixed for redemption, to the registered owner of each Bond subject to redemption in whole or in part at the registered owner's address shown on the Bond Register maintained by the Bond Registrar at the close of business on the 15th day preceding that mailing. Failure to receive notice by mail or any defect in that notice regarding any Bond, however, shall not affect the validity of the proceedings for the redemption of any Bond.

(v) Payment of Redeemed Bonds. In the event that notice of redemption shall have been given by the Bond Registrar to the registered owners as provided above, there shall be deposited with the Bond Registrar on or prior to the redemption date, moneys that, in addition to any other moneys available therefor and held by the Bond Registrar, will be sufficient to redeem at the redemption price thereof, plus accrued interest to the redemption date, all of the redeemable Bonds for which notice of redemption has been given. Notice having been mailed in the manner provided in the preceding paragraph hereof, the Bonds and portions thereof called for redemption shall become due and payable on the redemption date, and, subject to the provisions of subsection (d) of Section 3 and Section 5, upon presentation and surrender thereof at the place or places specified in that notice, shall be paid at the redemption price, plus accrued interest to the redemption date. If moneys for the redemption of all of the Bonds and portions thereof to be redeemed, together with accrued interest thereon to the redemption date, are held by the Bond Registrar on the

redemption date, so as to be available therefor on that date and, if notice of redemption has been deposited in the mail as aforesaid, then from and after the redemption date those Bonds and portions thereof called for redemption shall cease to bear interest and no longer shall be considered to be outstanding. If those moneys shall not be so available on the redemption date, or that notice shall not have been deposited in the mail as aforesaid, those Bonds and portions thereof shall continue to bear interest, until they are paid, at the same rate as they would have borne had they not been called for redemption. All moneys held by the Bond Registrar for the redemption of particular Bonds shall be held in trust for the account of the registered owners thereof and shall be paid to them, respectively, upon presentation and surrender of those Bonds, provided that any interest earned on the moneys so held by the Bond Registrar shall be for the account of and paid to the School District to the extent not required for the payment of the Bonds called for redemption.

SECTION 4. Execution and Authentication of Bonds; Appointment of Bond Registrar.

The Bonds shall be signed by the President or Vice President of this Board and the Treasurer of this Board, in the name and on behalf of the School District and in their official capacities, provided that either or both of those signatures may be a facsimile. The Bonds shall be issued in the Authorized Denominations and numbers as requested by the Original Purchasers and approved by the President and Treasurer, shall be numbered as determined by the Treasurer in order to distinguish each Bond from any other Bond and to distinguish Current Interest Bonds from Capital Appreciation Bonds, and shall express upon their faces the purpose, in summary terms, for which they are issued and that they are issued pursuant to Chapter 133 of the Revised Code and Section 133.34 thereof and this Resolution and that they are bonds approved by the voters of the School District at the election referred to in the first preamble to this Resolution.

The Huntington National Bank is appointed to act as the initial Bond Registrar. The President and Treasurer of this Board shall sign and deliver, in the name and on behalf of the School District, the Registrar Agreement between the School District and the Bond Registrar, in substantially the form as is now on file with the Treasurer. The Registrar Agreement is approved, together with any changes or amendments that are not inconsistent with this Resolution and not substantially adverse to the School District and that are approved by the President and Treasurer on behalf of the School District, all of which shall be conclusively evidenced by the signing of the Registrar Agreement or amendments thereto. The Treasurer shall provide for payment of services rendered and for reimbursement of expenses incurred pursuant to the Registrar Agreement, except to the extent paid or reimbursed by the Original Purchasers in accordance with the Purchase Agreement, from the proceeds of the Bonds to the extent available and then from other money lawfully available and appropriated or to be appropriated for that purpose.

No Bond shall be valid or obligatory for any purpose or shall be entitled to any security or benefit under the Bond proceedings unless and until the certificate of authentication printed on the Bond is signed by the Bond Registrar as authenticating agent. Authentication by the Bond Registrar shall be conclusive evidence that the Bond so authenticated has been duly issued, signed and delivered under, and is entitled to the security and benefit of, the Bond proceedings. The certificate of authentication may be signed by any authorized officer or employee of the Bond Registrar or by any other person acting as an agent of the Bond Registrar and approved by the Treasurer on behalf of the School District. The same person need not sign the certificate of authentication on all of the Bonds.



SECTION 5. Registration; Transfer and Exchange; Book Entry System. (a) Bond Registrar. So long as any of the Bonds remain outstanding, the School District will cause the Bond Registrar to maintain and keep the Bond Register at its principal corporate trust office. Subject to the provisions of subsection (d) of Section 3 and subsection (c) of Section 6, the person in whose name a Bond is registered on the Bond Register shall be regarded as the absolute owner of that Bond for all purposes of the Bond proceedings. Payment of or on account of the debt charges on any Bond shall be made only to or upon the order of that person; neither the School District nor the Bond Registrar shall be affected by any notice to the contrary, but the registration may be changed as provided in this Section. All such payments shall be valid and effectual to satisfy and discharge the School District's liability upon the Bond, including interest, to the extent of the amount or amounts so paid.

(b) Transfer and Exchange. Any Bond may be exchanged for Bonds of any Authorized Denomination upon presentation and surrender at the principal corporate trust office of the Bond Registrar, together with a request for exchange signed by the registered owner or by a person legally empowered to do so in a form satisfactory to the Bond Registrar. A Bond may be transferred only on the Bond Register upon presentation and surrender of the Bond at the principal corporate trust office of the Bond Registrar together with an assignment signed by the registered owner or by a person legally empowered to do so in a form satisfactory to the Bond Registrar. Upon exchange or transfer the Bond Registrar shall complete, authenticate and deliver a new Bond or Bonds of any Authorized Denomination or Denominations requested by the owner equal in the aggregate to the unmatured principal amount of the Bond surrendered and bearing interest at the same rate and maturing on the same date.

If manual signatures on behalf of the School District are required, the Bond Registrar shall undertake the exchange or transfer of Bonds only after the new Bonds are signed by the authorized officers of the School District. In all cases of Bonds exchanged or transferred, the School District shall sign and the Bond Registrar shall authenticate and deliver Bonds in accordance with the provisions of the Bond proceedings. The exchange or transfer shall be without charge to the owner, except that the School District and the Bond Registrar may make a charge sufficient to reimburse them for any tax or other governmental charge required to be paid with respect to the exchange or transfer. The School District or the Bond Registrar may require that those charges, if any, be paid before the procedure is begun for the exchange or transfer. All Bonds issued and authenticated upon any exchange or transfer shall be valid obligations of the School District, evidencing the same debt, and entitled to the same security and benefit under the Bond proceedings as the Bonds surrendered upon that exchange or transfer. Neither the School District nor the Bond Registrar shall be required to make any exchange or transfer of (i) Bonds then subject to call for redemption between the 15th day preceding the mailing of notice of Bonds to be redeemed and the date of that mailing, or (ii) any Bond selected for redemption, in whole or in part.

(c) Book Entry System. Notwithstanding any other provisions of this Resolution, if the President and Treasurer of this Board determine in the Certificate of Award that it is in the best interest of and financially advantageous to the School District, the Bonds may be issued in book entry form in accordance with the following provisions of this Section.

The Bonds may be issued to a Depository for use in a book entry system and, if and so long as a book entry system is utilized, (i) the Bonds may be issued in the form of a single, fully registered Bond representing each maturity and interest rate (or compounding interest rate) within a maturity and registered in the name of the Depository or its nominee, as registered owner, and deposited with and retained in the custody of the Depository or its designated agent which may be the Bond Registrar; (ii) the book entry interest owners of Bonds in book entry form shall not have any right to receive Bonds in the form of physical securities or certificates; (iii) ownership of book entry interests in Bonds in book entry form shall be shown by book entry on the system maintained and operated by the Depository and its Participants, and transfers of the ownership of book entry interests shall be made only by book entry by the Depository and its Participants; and (iv) the Bonds as such shall not be transferable or exchangeable, except for transfer to another Depository or to another nominee of a Depository, without further action by the School District.

If any Depository determines not to continue to act as a Depository for the Bonds for use in a book entry system, the Treasurer may attempt to establish a securities depository/book entry relationship with another qualified Depository. If the Treasurer does not or is unable to do so, the Treasurer, after making provision for notification of the book entry interest owners by the then Depository and any other arrangements deemed necessary, shall permit withdrawal of the Bonds from the Depository, and shall cause Bond certificates in registered form to be authenticated by the Bond Registrar and delivered to the assigns of the Depository or its nominee, all at the cost and expense (including any costs of printing), if the event is not the result of School District action or inaction, of those persons requesting such issuance.

The Treasurer is hereby authorized and directed, to the extent necessary or required, to enter into any agreements, in the name and on behalf of the School District, that he determines to be necessary in connection with a book entry system for the Bonds.

**SECTION 6. Sale of the Bonds.** (a) To the Original Purchasers. The Bonds shall be sold by the President and Treasurer of this Board to the Original Purchasers at private sale at a purchase price not less than 100% of the aggregate principal amount thereof plus any accrued interest on the Bonds from their date to the Closing Date, as shall be specified in the Certificate of Award, and with and upon such other terms as are required or authorized by this Resolution to be specified in the Certificate of Award, in accordance with law, the provisions of this Resolution and the Purchase Agreement.

The President and Treasurer of this Board shall sign and deliver the Certificate of Award to determine and specify the interest rates the Bonds are to bear, the final purchase price of the Bonds and other final terms of the Bonds in accordance with the provisions of this Resolution and to evidence the sale of the Bonds to the Original Purchasers and the Treasurer shall thereafter cause the Bonds to be prepared and signed and delivered, together with a true transcript of proceedings with reference to the issuance of the Bonds, to the Original Purchasers upon payment of the purchase price. The President, Vice President and Treasurer of this Board, the Superintendent of Schools and other School District officials, as appropriate, each are authorized and directed to sign any transcript certificates, financial statements and other documents and instruments and to take such actions as are necessary or appropriate to consummate the transactions contemplated by this Resolution.

The President and Treasurer of this Board shall also sign and deliver, in the name and on behalf of the School District, the Purchase Agreement between the School District and the Original Purchasers, in substantially the form as is now on file with the Treasurer, providing for the sale of the Bonds to, and the purchase of the Bonds by, the Original Purchasers. The Purchase Agreement is approved, together with any changes or amendments that are not inconsistent with this Resolution and not substantially adverse to the School District and that are approved by the President and Treasurer of this Board on behalf of the School District, all of which shall be conclusively evidenced by the signing of the Purchase Agreement or amendments to that Agreement.

(b) Primary Offering Disclosure -- Official Statement. The President and Treasurer of this Board and the Superintendent of Schools are authorized and directed, on behalf of the School District and in their official capacities, to (i) prepare or cause to be prepared, and to make or authorize modifications, completions or changes of or supplements to, an official statement in connection with the original issuance of the Bonds, (ii) determine, and to certify or otherwise represent, when the official statement is to be "deemed final" (except for permitted omissions) by the School District as of its date or is a final official statement for purposes of the Rule, (iii) use and distribute, or authorize the use and distribution of that official statement and any supplements thereto in connection with the original issuance of the Bonds, and (iv) complete and sign the final official statement as so approved, together with such certificates, statements or other documents in connection with the finality, accuracy and completeness of that official statement as they deem necessary or appropriate.

(c) Agreement to Provide Continuing Disclosure. For the benefit of the holders and beneficial owners from time to time of the Bonds, the School District agrees to provide or cause to be provided such financial information and operating data, audited financial statements and notices of the occurrence of certain events, in such manner as may be required for purposes of the Rule. The President and the Treasurer of this Board and the Superintendent of Schools are authorized and directed to complete, sign and deliver the Continuing Disclosure Agreement, in the name and on behalf of the School District, in substantially the form as is now on file with the Treasurer. The Continuing Disclosure Agreement is approved, together with any changes or amendments that are not inconsistent with this Resolution and not substantially adverse to the School District and that are approved by the President and Treasurer of this Board and the Superintendent of Schools on behalf of the School District, all of which shall be conclusively evidenced by the signing of the Continuing Disclosure Agreement.

The Treasurer is further authorized and directed to establish procedures in order to ensure compliance by the School District with its Continuing Disclosure Agreement, including timely provision of information and notices as described above. Prior to making any filing required under the Rule, the Treasurer shall consult with and obtain legal advice from, as appropriate, the bond counsel or other qualified independent special counsel selected by the School District. The Treasurer, acting in the name and on behalf of the School District, shall be entitled to rely upon any such legal advice in determining whether a filing should be made. The performance by the School District of its Continuing Disclosure Agreement shall be subject to the annual appropriation of any funds that may be necessary to perform it.

(d) Applications for Ratings and Bond Insurance; Financing Costs. If, in the judgment of the President or Treasurer of this Board, the filing of an application for (i) a rating on the Bonds by one or more nationally-recognized rating agencies and/or (ii) a policy of insurance from a company or companies to better assure the payment of principal of and interest on the Bonds is in the best interest of and financially advantageous to this School District, those officers are each authorized to prepare and submit those applications. Each of those officers is also authorized to provide to each such agency or company such information as may be required for the purpose and, if it is, in his or her judgment, in the best interest of and financially advantageous to this School District, to accept a commitment for insurance issued by a nationally recognized municipal bond insurance company insuring the payment when due of the principal of and interest on all or any portion of the Bonds. The President and the Treasurer of this Board are authorized to enter into any agreements, on behalf of and in the name of the School District, that they determine to be necessary or required to obtain such ratings or insurance.

The expenditure of the amounts necessary to secure those ratings and to pay the other financing costs (as defined in Section 133.01 of the Revised Code) in connection with the Bonds, to the extent not paid by the Original Purchasers in accordance with the Purchase Agreement, is authorized and approved, and the Treasurer is authorized to provide for the payment of any such amounts and costs from the proceeds of the Bonds to the extent available and otherwise from any other funds lawfully available that are appropriated or shall be appropriated for that purpose. The Treasurer is authorized to enter into any agreements, on behalf of and in the name of the School District, that the Treasurer determines to be necessary or required to obtain such ratings or insurance.

SECTION 7. Refunding; Call of Refunded Bonds. This Board determines that, subject to the determination of the President and Treasurer of this Board that rates available on the sale date will enable the School District to obtain satisfactory net present value savings as provided in Section 3(c), it is in the best interest of the School District to refund the Refunded Bonds and to redeem the Refunded Bonds by optional redemption on December 1, 2023, the earliest optional redemption date for the Series 2018 Bonds. The Treasurer is authorized and directed to give to The Bank of New York Mellon Trust Company, N.A., as the authenticating agent, bond registrar, transfer agent and paying agent for the Refunded Bonds, on or promptly after the Closing Date, written notice of that call for redemption, and the Refunded Bonds shall be redeemed in accordance with the provisions of this Resolution, the Refunded Bonds, the Series 2018 Bond Legislation and the Escrow Agreement. The School District covenants for the benefit of the holders of the Refunded Bonds and of the Bonds that it will at no time on or after the Closing Date take actions to modify or rescind that call for prior redemption, and that it will take, and will cause the bond registrar and paying agent for the Refunded Bonds to take, all steps required by the terms of the Refunded Bonds to make and perfect that call for prior redemption.

SECTION 8. Escrow Trustee. The Bank of New York Mellon Trust Company, N.A. is appointed and authorized to act as the initial Escrow Trustee with respect to the refunding of the Refunded Bonds. The Escrow Trustee is authorized and directed to cause notice of the refunding and defeasance of the Refunded Bonds to be given in accordance with the Escrow Agreement. The President and Treasurer of this Board shall sign and deliver, in the name and on behalf of the School District and in their official capacities, the Escrow Agreement, in substantially the form as is now on



file with the Treasurer. The Escrow Agreement is approved, together with any changes or amendments that are not inconsistent with this Resolution and not substantially adverse to the School District and that are approved by the President and Treasurer on behalf of the School District, all of which shall be conclusively evidenced by the signing of the Escrow Agreement or amendments thereto. The Treasurer shall provide for the payment of the services rendered and for reimbursement of expenses incurred pursuant to the Escrow Agreement except to the extent paid by the Original Purchasers in accordance with the Purchase Agreement, from the proceeds of the Bonds to the extent available and otherwise from other funds lawfully available and that are appropriated or shall be appropriated for that purpose.

SECTION 9. Escrow Fund. There is created under the Escrow Agreement a trust fund, designated the "2019 Brecksville- Broadview Heights City School District Refunded Bonds Escrow Fund", that shall be held and maintained by the Escrow Trustee in trust for the registered owners of the Refunded Bonds and is pledged for the payment of principal of and interest on the Refunded Bonds, all in accordance with the provisions of the Escrow Agreement. The Treasurer is hereby authorized and directed to pay or cause to be paid to the Escrow Trustee for deposit in the Escrow Fund (i) any available funds on deposit in the Bond Retirement Fund for the payment of debt charges on the Refunded Bonds determined by the Treasurer to be applied for that purpose, and (ii) proceeds from the sale of the Bonds, except any accrued interest and any proceeds to be used for the payment of any expenses properly allocable to the refunding of the Refunded Bonds or the issuance of the Bonds as determined by the Treasurer, in the amount required, together with the funds referred to in (i), to provide for the defeasance of the Refunded Bonds. Those funds and proceeds so paid to the Escrow Trustee are appropriated and shall be applied to pay principal of and interest on the Refunded Bonds, as provided in the Escrow Agreement.

The funds so deposited in the Escrow Fund shall be (a) held in cash to the extent that they are not needed to make investments hereinafter described and (b) invested in direct obligations of, or obligations guaranteed as to payment by, the United States of America (within the meaning of Section 133.34(D) of the Revised Code) that mature or are subject to redemption by and at the option of the holder, in amounts sufficient, together with any uninvested cash in the Escrow Fund but without further investment or reinvestment, for the payment of (i) the interest on the Refunded Bonds when due on each June 1 and December 1 following the date of issuance of the Bonds through and including December 1, 2023, and (ii) the principal of the Refunded Bonds upon their redemption by optional redemption on December 1, 2023, all as provided in the Escrow Agreement.

If U.S. Treasury Securities -- State and Local Government Series are to be purchased for the Escrow Fund, the Escrow Trustee, the Treasurer and the Original Purchasers, or any of them individually, are hereby specifically authorized to file, on behalf of the School District, subscriptions for the purchase and issuance of those U.S. Treasury Securities - State and Local Government Series. If, in the judgment of the Treasurer, an open-market purchase of obligations described in (b) in the preceding paragraph for the Escrow Fund is in the best interest of and financially advantageous to this District, the Treasurer or any other officer of the School District, on behalf of the School District and in his or her official capacity, may purchase and deliver such obligations, engage the services of a municipal advisor, financial advisor, bidding agent or similar entity for the purpose of facilitating the bidding, purchase and delivery of such obligations for, and any related structuring of, the Escrow Fund, execute such instruments as are deemed necessary to

engage such services for such purpose, and provide further for the payment of the cost of obtaining such services, except to the extent paid by the Original Purchasers in accordance with the Purchase Agreement, from the proceeds of the Bonds to the extent available and otherwise from any other funds lawfully available and that are appropriated or shall be appropriated for that purpose. Any actions heretofore taken by any of those officers in connection with the foregoing are hereby ratified and approved.

SECTION 10. Application of Proceeds. The proceeds from the sale of the Bonds received by the School District shall be applied as follows: (i) proceeds in the amount required, together with any funds on deposit in the Bond Retirement Fund available for the payment of debt charges on the Refunded Bonds and determined by the Treasurer to be applied for the purpose, to provide for the defeasance of the Refunded Bonds shall be paid into the Escrow Fund as provided in Section 9, (ii) any proceeds to be used for the payment of any expenses properly allocable to the refunding of the Refunded Bonds or the issuance of the Bonds, as determined by the Treasurer, shall be paid into the proper fund or funds and applied for that purpose and (iii) any proceeds representing accrued interest and any other remaining proceeds shall be paid into the Bond Retirement Fund. The proceeds from the sale of the Bonds (except any accrued interest and other proceeds paid into the Bond Retirement Fund) are appropriated and shall be used for the purpose for which the Bonds are being issued.

SECTION 11. Provisions for Tax Levy. There shall be levied on all the taxable property in the School District, in addition to all other taxes, a direct tax annually during the period the Bonds are outstanding in an amount sufficient to pay the debt charges on the Bonds when due, which tax shall not be less than the interest and sinking fund tax required by Section 11 of Article XII of the Ohio Constitution. The tax shall be unlimited as to amount or rate, shall be and is ordered computed, certified, levied and extended upon the tax duplicate and collected by the same officers, in the same manner and at the same time that taxes for general purposes for each of those years are certified, levied, extended and collected, and shall be placed before and in preference to all other items and for the full amount thereof. The proceeds of the tax levy shall be placed in the Bond Retirement Fund, which is irrevocably pledged for the payment of the debt charges on the Bonds when and as the same fall due.

SECTION 12. Federal Tax Considerations. The School District does not intend or represent that the interest on the Bonds will be excluded from gross income for federal income tax purposes under Section 103 of the Internal Revenue Code of 1986, as amended, and the School District is not and shall not be obligated to take any action to attempt to secure or maintain any such exclusion.

SECTION 13. Certification and Delivery of Resolution and Certificate of Award and Notice of Defeasance. The Treasurer is directed to deliver to the Cuyahoga County Fiscal Officer (i) a certified copy of this Resolution and a signed copy of the Certificate of Award as soon as each is available and (ii) promptly after the Closing Date, a certificate to the effect that, in accordance with Section 133.34 of the Revised Code, the Refunded Bonds are no longer considered to be outstanding.

SECTION 14. Retention of Bond and Disclosure Counsel. The retention of the legal services of Squire Patton Boggs (US) LLP, as bond counsel and disclosure counsel in connection

with the issuance of the Bonds and the refunding of the Refunded Bonds, is hereby confirmed. The legal services shall be in the nature of legal advice and recommendations as to the documents and the proceedings in connection with the authorization, issuance and sale of the Bonds and the refunding and defeasance of the Refunded Bonds and the rendering of the necessary legal opinions and advice upon the delivery of the Bonds, all as set forth in the form of engagement letter, dated September 24, 2019, now on file with the Treasurer. In rendering those legal services, as an independent contractor and in an attorney-client relationship, that firm shall not exercise any administrative discretion on behalf of the School District in the formulation of public policy, expenditure of public funds, enforcement of laws, rules and regulations of the State, the School District or any other political subdivision, or the execution of public trusts. That firm shall be paid just and reasonable compensation for those legal services and shall be reimbursed for the actual out-of-pocket expenses it incurs in rendering those legal services. The Treasurer is authorized and directed to sign and deliver the engagement letter on behalf of the Board, and to make appropriate certification as to the availability of funds for those fees and any reimbursement and to issue an appropriate order for their timely payment as written statements are submitted by that firm.

SECTION 15. Retention of Municipal Advisor. The retention of Sudsina & Associates, LLC to provide municipal advisory services in connection with the issuance and sale of the Bonds and other matters related thereto is hereby confirmed. In providing those municipal advisory services, as an independent contractor and in a municipal advisory relationship with the School District, that firm shall not exercise any administrative discretion on behalf of the School District in the formulation of public policy, expenditure of public funds, enforcement of laws, rules and regulations of the State, any county or municipal corporation or of this School District, or the execution of public trusts. For those municipal advisory services that firm shall be paid just and reasonable compensation and shall be reimbursed for actual out-of-pocket expenses incurred in providing those municipal advisory services. To the extent they are not paid by the Original Purchasers pursuant to the Purchase Agreement, the Treasurer is authorized and directed to make appropriate certification as to the availability of funds for those fees and any reimbursement and to issue an appropriate order for their timely payment as written statements are submitted by that firm.

SECTION 16. Satisfaction of Conditions for Bond Issuance. This Board determines that all acts and conditions necessary to be performed by the Board or the School District or to have been met precedent to and in the issuing of the Bonds in order to make them legal, valid and binding general obligations of the Brecksville-Broadview Heights City School District have been performed and have been met, or will at the time of delivery of the Bonds have been performed and have been met, in regular and due form as required by law; that the full faith and credit and general property taxing power (as described in Section 11) of the School District are pledged for the timely payment of the debt charges on the Bonds; and that no statutory or constitutional limitation of indebtedness or taxation will have been exceeded in the issuance of the Bonds.

SECTION 17. Compliance with Open Meeting Requirements. This Board finds and determines that all formal actions of this Board and of any of its committees concerning and relating to the adoption of this Resolution were taken, and that all deliberations of this Board and of any of its committees that resulted in those formal actions were held, in meetings open to the public in compliance with the law.

SECTION 18. Effective Date. This Resolution shall be in full force and effect immediately upon its adoption.

\_\_\_\_\_ seconded the motion.

Upon roll call on the adoption of the Resolution, the vote was as follows:

\_\_\_\_\_

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\_\_\_\_\_  
**TREASURER'S CERTIFICATION**

The above is a true and correct extract from the minutes of the special meeting of the Board of Education of the Brecksville-Broadview Heights City School District held on September 24, 2019, commencing at 7:00 p.m., at the Education Center, 6638 Mill Road, Brecksville, Ohio, showing the adoption of the resolution hereinabove set forth.

Dated: September 24, 2019

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Interim Treasurer, Board of Education  
Brecksville-Broadview Heights City School District, Ohio